

On the topic of *free speech*, a subcategory of *free expression*, authors Chemerinsky and Gillman have written the following book, “Free Speech on Campus”, highlighting both the controversies and consequences that arise from the use of *hate speech*. In fact, they believe that “...all ideas and views should be able to be expressed on college campuses no matter how offensive or how uncomfortable they make people feel. But there are steps that campuses can and should take to create inclusive communities...” (*Free Speech on Campus*, 19) It is more than safe to say that Chemerinsky and Gillman have built compelling arguments to support this claim: how freedom of expression is fundamental to freedoms such as *thought* and *speech*, how *speech codes* can be too vague, potentially causing more harm than good, and how censoring words will lead to the censoring of ideas soon afterwards.

An expression is an action based on an idea or belief that springs from an initial thought. One has a thought which can be a belief, or it can blossom into an idea, which in turn gets expressed either through speech or some other form, e.g., written speech, art, etc. The freedom to express oneself is looked at by the Supreme Court as having a “fundamental right within our political system” (26) –a bough for which “nearly every other form of freedom” (*Free Speech on Campus*, 26) branches out from. Chemerinsky and Gillman’s thesis is built first on the ability to have thoughts, and then to be able to express them, whatever they may be without fearing that they will be met with silence or punishment, but what is best for campuses is to build spaces that welcome everyone, at least until given a very clear reason to welcome them no longer (this is easier said than done of course).

What is a *speech code* exactly? And how can it be helpful to have them implemented? How can they be harmful? A speech code is a law, or rule, set by a system, e.g., educational, political, etc., which aims to dissuade the use of words and phrases considered as *hate speech*.

Chemerinsky and Gillman emphasize how speech codes issued by the mentioned social systems, to protect against hate speech, have shown to be "vague and overbroad". (*Free Speech on Campus*, 83) While a speech code is offering protection, sure, it risks affecting groups of people that may not have initially been of interest to protect against. If a limit is put on the speech of a particular group of people, said limit needs to be explicit in its description of the words that can and cannot be said, but even then the authors argue this is no easy decision to make as it can lead to greater harm.

Social systems that censor ideas— a potential byproduct of having speech codes. The "censorship of words"(87), Chemerinsky and Gillman state, "leads to the censorship of ideas". (87) As they aren't seemingly for the use of hate speech, they recognize that we are all individual people, with our own thoughts and ideas; and in their words, "...there is simply no way to regulate hate speech without censoring ideas." (*Freedom of Speech on Campus*, 68)

Why then, do these arguments seem so compelling? Let us look from the other side of the table. Imagine living in a world where you are scared to have an original thought. Why is that? What events have happened prior to this? Maybe someone at some point had a thought—and then expressed that thought, and now due to the act of expression, they have been punished in some way. But why was the individual punished? Was the thought one of bad nature, meaning it intended to cause harm e.g., emotional, physical, etc., or was it by chance a thought that manifested into an opinion or belief that shaved against the grain of the public's popular understandings? It's important to highlight the difference: the former has a reason to punish because there was intended harm, (although this can be tricky because some can think a thought to be harmful—evil, while others can find the same thought to be liberating—good; it depends on the context), and the latter being an example of social systems abusing their power to adapt to

new ideas that can potentially be of benefit. Simply put, if we are punished for expressing ourselves, albeit our ideas, we may very well stop expressing our ideas altogether one day, which is to deny ourselves the essence of what it means to be human. Imagine how dry a college experience would then be; nothing but mindless meatsuits walking the campus day-in and day-out.

Let us consider a counterargument: *We need rules in place on college campuses to protect against those that use words and/or phrases, and that spring forth ideas that can in turn cause harm to a particular group of people.* On the surface, this seems like a sound argument—don't say things that are going to harm others, and don't spread harmful ideas—but what if everyone has a different list of topics and terms they deem harmful and offensive? What if everyone defines harm differently? How do we know if an idea is bad until it is expressed, and feedback has been given? An example could be someone saying some very rude things at the bar to a fellow friend, and you have finally had enough of it. So you say "I have an idea. I'm going to go hit him in the mouth so he can no longer talk," to which your friend reminds you that you can also get in trouble for doing this, arguably more for assaulting the person, physically." This then (hopefully) leads to you accepting the feedback of your idea, and not going through with it. Sure, that example had the potential to be harmful, but it was having the ability to express the idea that actually averted further harm.

So all in all, it's tricky to say that we should be able to express ideas that can cause harm and offend others. But it is sort of like the saying, 'You need to have bad in order to understand what good is... but even then do you truly know the difference?' Sure we don't all have the best thoughts, so there's simply no way for us all to have good ideas. But we must still hear everyone's ideas; and we must not be scared to express whatever ideas we may have. That is

what Cherminsky and Gillman's thesis is attempting to reinforce. For those that use their freedom of expression, i.e., speech, to harm others, said "others" can just as easily use their own freedoms to defend themselves, but overall, everyone gets to express their right to express.